

III

While I strongly disagree with the decision to grant a stay in this case, I recognize that Murphy, like Ray, raises serious questions under both the First Amendment and RLUIPA. Murphy argues, among other things, that Texas's policy of admitting only authorized chaplains illegally discriminates on the basis of religion. That is the argument embraced by both the concurrence in this case and the dissent in *Ray*. Both of those opinions seem to see this religious discrimination claim as one that is easily resolved under our Establishment Clause precedents, but that is simply not so.

Both opinions invoke precedents involving the constitutional rights of persons who are not incarcerated, see *Ray*, 586 U.S., at 1139; *ante*, at 901–902, and there is no question that, if Murphy were not in prison, Texas could not tell him that the only cleric he could have at his side in the moments before death is one who is approved by the State. But this Court's precedents hold that imprisonment necessarily imposes limitations on a prisoner's constitutional rights. See *Turner v. Safley*, 482 U.S. 78, 90 (1987); *O'Lone v. Estate of Shabazz*, 482 U.S. 342, 348–350 (1987). Under those cases, it is not enough for a prisoner to assert a claim that would succeed in the outside world. Instead, we must consider the following four factors: (1) whether a prison rule bears a “valid, rational connection to a legitimate governmental interest”; (2) “whether alternative means are open to inmates to exercise the asserted right”; (3) “what impact an accommodation of the right would have on guards, inmates, and prison resources”; and (4) “whether there are ready alternatives to the regulation.” *Overton v. Bazzetta*, 539 U.S. 126, 132 (2003) (quoting *Turner*, *supra*, at 89–91; internal quotation marks omitted). Neither the

District Court refused to issue a stay of execution, holding, among other things, that the application was untimely, *Ray v. Dunn*, 2019 WL 418105, *1 (MD Ala., Feb. 1, 2019), but on February 6, the Eleventh Circuit granted a stay on the ground that Alabama's policy of allowing only its official chaplain, a Christian minister, to enter the execution room likely violated the Establishment Clause. *Ray v. Commissioner, Ala. Dept. of Corrections*, 915 F.3d 689, 695–701, 703 (2019). The State asked us to vacate this stay, and we did so based on Ray's delay in raising his religious liberty claims. See *Ray*, 586 U.S., at 1138. In both *Ray* and this case, the Court was presented at the last minute with claims that raised complicated issues that cannot be adequately decided with hasty briefing and an inadequate record.

Ray dissent nor the concurrence in this case even mentions these precedents. Indeed, the *Ray* dissent is based on strict scrutiny, 586 U. S., at 1139, even though *Turner* specifically and emphatically rejected the use of that test in prisoner cases, 482 U. S., at 89.

On the flimsy record now before us, I would not presume to apply the *Turner* factors to Murphy's First Amendment claims, but there can be no doubt that *Turner* presents a serious obstacle. Here, Texas argues that it must be able to regulate the members of the clergy who are allowed in the execution room in order to ensure that these individuals do not intentionally or unintentionally engage in any conduct that might interfere with an execution. Murphy responds that Texas has failed to show that this is a real concern in his case because Rev. Shih has visited him in prison without incident and because Texas had sufficient time to do whatever additional vetting and training it thinks is needed. But on the present record, we cannot tell whether this is true. Visiting a living prisoner is not the same as watching from a short distance and chanting while a lethal injection is administered. And Texas may have an interest that goes beyond interference with Murphy's execution, namely, that allowing members of the clergy and spiritual advisers other than official chaplains to enter the execution room would set an unworkable precedent.

Specifically, Texas may be concerned that if it admits any cleric other than an official chaplain, every prisoner will insist on the presence of whichever outside cleric he prefers. Although the Court's order in this case permitted Texas to proceed with Murphy's execution if *any* Buddhist priest was allowed in the execution room, such a limited accommodation would not be acceptable in the outside world. There, Texas surely could not successfully defend a policy of admitting to the side of a dying patient only a state-approved cleric. Texas could not force a dying Baptist to settle for a Catholic priest; it could not tell an Orthodox Jew that only a Reform rabbi would be allowed at his side; it could not force a Shi'ite to accept a Sunni imam; and so forth. I am aware of no single authoritative tally of the number of religions and denominations that exist in the United States, but the number is certainly very large. And of course, even within a particular religion or denomination, all clerics are not fungible. Moreover, I assume that, in the world outside prison walls, a State could not discriminate between clerics and any other person whose

presence a dying patient might want at his side for spiritual or emotional support.

In permitting Murphy's execution to go forward provided that *some* Buddhist priest was allowed in the execution room, the Court may perhaps be understood to have concluded that a prison need not afford a prisoner facing execution the same array of choices that he would enjoy in the outside world. But if that is the Court's reasoning, what it shows is that the prison setting justifies important adjustments in the rules that apply outside prison walls. Determining just how far those adjustments may go is a sensitive question requiring an understanding of many factual questions that cannot be adequately decided on the thin record before us.⁴

So far, I have discussed the prospects of Murphy's Establishment Clause claim, but even if that claim cannot succeed, he might still prevail under RLUIPA, which was enacted by Congress to provide greater protection for religious liberty than do this Court's First Amendment precedents. To prevail under RLUIPA, Murphy would have to show at the outset that excluding Rev. Shih would impose a substantial burden on his exercise of religion. See 42 U.S.C. §2000cc-1(a).

We have not addressed whether, under RLUIPA or its cousin, the Religious Freedom Restoration Act of 1993 (RFRA), 107 Stat. 1488, 42 U.S.C. §2000bb *et seq.*, which contains an identical threshold requirement, §2000bb-1(b), there is a difference between a State's interference with a religious practice that is compelled and a religious practice that is merely preferred. In past

⁴I have discussed the constitutional claim set out in the concurrence in this case and in the *Ray* dissent, namely, an Establishment Clause claim based on discrimination among religions. But Murphy also asserts Free Exercise Clause and RLUIPA claims, which, as he frames them, do not depend on disparate treatment of different religions or denominations. If States respond to the decision on Murphy's stay application by banning all clerics from the execution room, that may obviate any conflict with the Establishment Clause, but a prisoner might still press free exercise claims. A claim under the Free Exercise Clause of the First Amendment would have to contend with both *Employment Div., Dept. of Human Resources of Ore. v. Smith*, 494 U.S. 872 (1990), and *Turner v. Safley*, 482 U.S. 78 (1987). Under RLUIPA, such a claim would present issues similar to those discussed below. See *infra* this page and 912.

cases, we have assessed regulations that compel an activity that a practitioner's faith prohibits. See, e. g., *Burwell v. Hobby Lobby Stores, Inc.*, 573 U. S. 682, 725–726 (2014); *Holt v. Hobbs*, 574 U. S. 352 (2015). And, while some Members of this Court have been reluctant to find that even a law compelling individuals to engage in conduct *condemned by their faith* imposes a substantial burden, see *Hobby Lobby*, 573 U. S., at 758–760 (GINSBURG, J., joined by BREYER, SOTOMAYOR, and KAGAN, JJ., dissenting) (arguing that it is not a substantial burden to require Christian-owned businesses to facilitate the acquisition of abortifacients), a majority of this Court has held that it is not for us to determine the *religious* importance or rationality of the affected belief or practice, see *id.*, at 723–726. Similarly, it may be that RLUIPA and RFRA do not allow a court to undertake for itself the determination of which religious practices are sufficiently mandatory or central to warrant protection, as both protect “any exercise of religion, *whether or not compelled by, or central to*, a system of religious belief.” §2000cc–5(7)(A) (emphasis added).

But this does not answer what results when the State offers a prisoner an alternative practice that, in terms of religious significance, is indistinguishable from the prohibited practice. Persons of many faiths may *desire* the support of a cleric in the moments before death, but not every religion would draw a distinction between a meeting with a clergyman shortly before death and one precisely at the moment of death. Murphy's situation, however, may be different because he believes that he will be reborn in the Pure Land only if he succeeds in remaining focused on Buddha while dying and that the chants of a Buddhist priest will help him in this endeavor. See Pet. for Prohibition in *In re Murphy*, No. 18–8615, pp. 12–17.

I will assume for present purposes that a policy like Texas's imposes a substantial burden on *any* prisoner who seeks the presence of a cleric other than one of the official chaplains, but that does not necessarily mean that the prisoner's RLUIPA claim would prevail. The State claims that its policy furthers its compelling interest in security and that the policy is narrowly tailored to serve that interest, see Brief in Opposition 20–23, 29, and in deciding whether its policy can be sustained on that basis, we would face unresolved factual questions that are similar to those

discussed above. The RLUIPA standard, § 2000cc-1(a)(2), to be sure, would be more favorable to the prisoner, but the nature of the underlying issues would be similar.

IV

The claims raised by Murphy and Ray are important and may ultimately be held to have merit. But they are not simple, and they require a careful consideration of the legitimate interests of both prisoners and prisons. See *Holt v. Hobbs*, *supra*. Prisoners should bring such claims well before their scheduled executions so that the courts can adjudicate them in the way that the claims require and deserve and so that States are afforded sufficient time to make any necessary modifications to their execution protocols.

In this case, however, Murphy egregiously delayed in raising his claims. By countenancing such tactics, the Court invites abuse.

For these reasons, Murphy's stay application, like Ray's, should have been denied.

Statement of JUSTICE KAVANAUGH, with whom THE CHIEF JUSTICE joins, respecting grant of application for stay.*

In light of JUSTICE ALITO's opinion dissenting from the Court's March 28 order, I write to respectfully add two points.

1. On March 28, the Court stayed Murphy's execution. Murphy is Buddhist and wanted a Buddhist minister in the execution room. Under Texas' policy at the time, inmates who were Christian or Muslim could have ministers of their religions in the execution room. But inmates such as Murphy who were of other religions could have ministers of their religions only in the adjacent viewing room and not in the execution room. That discriminatory state policy violated the Constitution's guarantee of religious equality.

On April 2, five days after the Court granted a stay, Texas changed its unconstitutional policy, and it did so effective immediately. Texas now allows all religious ministers only in the viewing room and not in the execution room. The new policy solves the equal-treatment constitutional issue. And because States have a compelling interest in controlling access to the execution

*[REPORTER'S NOTE: This statement was filed on May 13, 2019.]

room, as detailed in the affidavit of the director of the Texas Correctional Institutions Division and as indicated in the prior concurring opinion in this case, the new Texas policy likely passes muster under the Religious Land Use and Institutionalized Persons Act of 2000 (RLUIPA), 114 Stat. 803, 42 U.S.C. § 2000cc *et seq.*, and the Free Exercise Clause.

Put simply, this Court's stay facilitated the prompt resolution of a significant religious equality problem with the State's execution protocol and should alleviate any future litigation delays or disruptions that otherwise might have occurred as a result of the State's prior discriminatory policy.

2. I greatly respect JUSTICE ALITO's position that the Court nonetheless should have denied Murphy's stay application as untimely, although I ultimately disagree. In saying that the Court should have denied a stay in this case, JUSTICE ALITO points in part to the execution earlier this year of Domineque Ray in Alabama, where this Court did not approve a stay. But several significant differences between the two cases demonstrate why a stay was warranted in Murphy's case but not in Ray's case.

First, unlike Murphy, Ray did not raise an equal-treatment claim. Ray raised an Establishment Clause claim to have the State's Christian chaplain removed from the execution room. The State of Alabama then agreed to remove the Christian chaplain, thereby mooting that claim. Notably, in the District Court, Ray expressly agreed that his Establishment Clause claim would be moot if the State removed the Christian chaplain from the execution room, as the State subsequently agreed to do. Ray also raised a RLUIPA claim to have his Muslim religious minister in the execution room and not just in the viewing room. As noted above, however, the State has a compelling interest in controlling access to the execution room, which means that an inmate likely cannot prevail on a RLUIPA or free exercise claim to have a religious minister in the execution room, as opposed to the viewing room.

To be sure, in granting Ray a stay, the Eleventh Circuit relied on an equal-treatment theory, on the idea that the State's policy discriminated against non-Christian inmates. But Ray did not raise an equal-treatment argument in the District Court or the Eleventh Circuit. The Eleventh Circuit came up with the equal-treatment argument on its own, as the State correctly pointed out when the case later came to this Court. Amended Emer-

gency Motion and Application to Vacate Stay of Execution in *Dunn v. Ray*, O. T. 2018, No. 18A815, pp. 10–11, 17. Given that Ray did not raise an equal-treatment argument, the Eleventh Circuit’s stay of Ray’s execution on that basis was incorrect.

For present purposes, the bottom line is that Ray did not raise an equal-treatment claim. Murphy did.

Second, in response to the Eleventh Circuit’s stay in Ray’s case, Alabama indicated to this Court that an equal-treatment problem, if there were one, would typically be remedied by removing ministers of all religions from the execution room (as Texas has now done). *Id.*, at 17. That remedy would of course have done nothing for Ray, who wanted his religious minister *in the execution room*. That presumably explains why Ray raised a RLUIPA claim, but did not raise an equal-treatment claim. And that further explains why it was incorrect for the Eleventh Circuit to stay Ray’s execution on the basis of an argument (the equal-treatment theory) that was not raised by Ray and that, even if successful, would not have afforded Ray the relief he sought of having his religious minister in the execution room.

Third, Murphy made his request to the State of Texas a full month before his scheduled execution. Yet the State never responded to Murphy’s request to have any Buddhist minister in the execution room. The timing of Murphy’s request, when combined with the State’s foot-dragging in response and the ease with which the State could have promptly responded and addressed this discrete issue, was relevant to the assessment of the equities for purposes of the stay. See *Hill v. McDonough*, 547 U.S. 573, 584 (2006). As we have now seen, moreover, it took Texas only five days to change its discriminatory policy after a stay was granted. Texas’ prompt response in the wake of the stay further underscores that Murphy’s request was made in plenty of time for Texas to fix its discriminatory policy before Murphy’s scheduled execution. Moreover, unlike Alabama in Ray’s case, Texas did not indicate to this Court whether it would remedy any unconstitutional discrimination by allowing all ministers into the execution room or by keeping all ministers out. (After this Court granted the stay, the State of Texas chose the latter option.)

* * *

In sum, this Court’s stay in Murphy’s case was appropriate, and the stay facilitated a prompt fix to the religious equality problem

March 28, April 1, 2019

587 U. S.

in Texas' execution protocol. That said, both the facts and the religious equality claim in Murphy's case were highly unusual. I fully agree with JUSTICE ALITO that counsel for inmates facing execution would be well advised to raise any potentially meritorious claims in a timely manner, as this Court has repeatedly emphasized. See generally *Gomez v. United States Dist. Court for Northern Dist. of Cal.*, 503 U. S. 653, 654 (1992) (*per curiam*).

APRIL 1, 2019

Certiorari Dismissed

No. 18–8061. *GRIGSBY v. BALTAZAR, WARDEN*. C. A. 10th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. As petitioner has repeatedly abused this Court's process, the Clerk is directed not to accept any further petitions in noncriminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin v. District of Columbia Court of Appeals*, 506 U. S. 1 (1992) (*per curiam*). JUSTICE GORSUCH took no part in the consideration or decision of this motion and this petition. Reported below: 744 Fed. Appx. 592.

Miscellaneous Orders

No. 18M121. *RIDGEWAY v. GILMORE, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT GREENE, ET AL.*;

No. 18M122. *KENON v. UNITED STATES*;

No. 18M123. *FRANKLIN v. MAY, WARDEN, ET AL.*; and

No. 18M124. *DANIELS v. BRENNAN, POSTMASTER GENERAL*. Motions to direct the Clerk to file petitions for writs of certiorari out of time denied.

No. 17–9560. *REHAIF v. UNITED STATES*. C. A. 11th Cir. [Certiorari granted, 586 U. S. 1113.] Motion of petitioner to dispense with printing joint appendix granted.

No. 18–459. *EMULEX CORP. ET AL. v. VARJABEDIAN ET AL.* C. A. 9th Cir. [Certiorari granted, 586 U. S. 1063.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae* and for divided argument granted.

No. 18–481. *FOOD MARKETING INSTITUTE v. ARGUS LEADER MEDIA, DBA ARGUS LEADER*. C. A. 8th Cir. [Certiorari

587 U.S.

April 1, 2019

granted, 586 U.S. 1112.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae* and for divided argument granted.

No. 18–5881. VURIMINDI *v.* HOOPSKIRT LOFTS CONDOMINIUM ASSN. Commw. Ct. Pa. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [586 U.S. 986] denied.

No. 18–7530. UDOH ET VIR *v.* MINNESOTA DEPARTMENT OF HUMAN SERVICES ET AL. C. A. 8th Cir.;

No. 18–7647. SMITH ET VIR *v.* MANASQUAN SAVINGS BANK. Sup. Ct. N. J.; and

No. 18–7907. HASSAN *v.* MARKS, CHIEF ADMINISTRATIVE JUDGE, ET AL. C. A. 2d Cir. Motions of petitioners for leave to proceed *in forma pauperis* denied. Petitioners are allowed until April 22, 2019, within which to pay the docketing fees required by Rule 38(a) and to submit petitions in compliance with Rule 33.1 of the Rules of this Court.

No. 18–8322. IN RE MADKINS; and

No. 18–8356. IN RE EASON. Petitions for writs of habeas corpus denied.

No. 18–982. IN RE HENNAGER ET AL.;

No. 18–7596. IN RE RUSSO;

No. 18–7630. IN RE FREY;

No. 18–8156. IN RE BOWDEN;

No. 18–8169. IN RE AGUIRRE; and

No. 18–8220. IN RE GRAHAM. Petitions for writs of mandamus denied.

No. 18–7583. IN RE HERRON. Motion of petitioner for leave to proceed *in forma pauperis* denied, and petition for writ of mandamus dismissed. See this Court’s Rule 39.8. As petitioner has repeatedly abused this Court’s process, the Clerk is directed not to accept any further petitions in noncriminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin v. District of Columbia Court of Appeals*, 506 U.S. 1 (1992) (*per curiam*).

No. 18–7704. IN RE ALBRA. Motion of petitioner for leave to proceed *in forma pauperis* denied, and petition for writ of mandamus dismissed. See this Court’s Rule 39.8.

April 1, 2019

587 U. S.

No. 18–7013. IN RE ZIMMERMANN;
No. 18–7673. IN RE HIRAMANNEK; and
No. 18–7686. IN RE THOMAS BEY. Petitions for writs of mandamus and/or prohibition denied.

Certiorari Granted

No. 18–556. KANSAS *v.* GLOVER. Sup. Ct. Kan. Certiorari granted. Reported below: 308 Kan. 590, 422 P. 3d 64.

Certiorari Denied

No. 18–579. ALASKA AIRLINES, INC. *v.* SCHURKE ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 898 F. 3d 904.

No. 18–608. CAPITAL MEDICAL CENTER *v.* NATIONAL LABOR RELATIONS BOARD ET AL. C. A. D. C. Cir. Certiorari denied. Reported below: 909 F. 3d 427.

No. 18–682. SANTANA *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 739 Fed. Appx. 543.

No. 18–694. WILLIAMS *v.* MERIT SYSTEMS PROTECTION BOARD ET AL. C. A. Fed. Cir. Certiorari denied. Reported below: 892 F. 3d 1156.

No. 18–696. CENTER FOR MEDICAL PROGRESS ET AL. *v.* PLANNED PARENTHOOD FEDERATION OF AMERICA ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 890 F. 3d 828.

No. 18–814. WALKER, INDIVIDUALLY AND ON BEHALF OF ALL OTHERS SIMILARLY SITUATED *v.* CITY OF CALHOUN, GEORGIA. C. A. 11th Cir. Certiorari denied. Reported below: 901 F. 3d 1245.

No. 18–959. ROOKS *v.* ROOKS. Sup. Ct. Colo. Certiorari denied. Reported below: 429 P. 3d 579.

No. 18–965. SULLIVAN *v.* PUGH ET UX. Ct. App. N. C. Certiorari denied. Reported below: 258 N. C. App. 691, 814 S. E. 2d 117.

No. 18–968. NAJDA *v.* PATERAKIS. App. Ct. Mass. Certiorari denied. Reported below: 93 Mass. App. 1103, 103 N. E. 3d 767.

No. 18–975. STUART *v.* LANE ET AL. Ct. App. Ariz. Certiorari denied.

587 U.S.

April 1, 2019

No. 18–978. *ROBERTSON v. REPUBLIC OF NICARAGUA ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 719 Fed. Appx. 705.

No. 18–992. *BELTRAN ORTIZ v. BARR, ATTORNEY GENERAL.* C. A. 5th Cir. Certiorari denied.

No. 18–1012. *LAFFERTY ET AL. v. WELLS FARGO BANK, N. A.* Ct. App. Cal., 3d App. Dist. Certiorari denied. Reported below: 25 Cal. App. 5th 398, 235 Cal. Rptr. 3d 842.

No. 18–1030. *UNITED STATES EX REL. BERG ET AL. v. HONEYWELL INTERNATIONAL, INC., ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 740 Fed. Appx. 535.

No. 18–1032. *MAWHINNEY v. AMERICAN AIRLINES, INC.* C. A. 9th Cir. Certiorari denied. Reported below: 904 F. 3d 1114.

No. 18–1046. *CALLAHAN ET AL. v. PACIFIC CYCLE, INC.* C. A. 4th Cir. Certiorari denied. Reported below: 756 Fed. Appx. 216.

No. 18–1051. *DICKEY v. CITY OF BOSTON INSPECTIONAL SERVICES DEPARTMENT.* C. A. 1st Cir. Certiorari denied.

No. 18–1066. *CHANG ET AL. v. UNITED STATES.* C. A. 9th Cir. Certiorari denied. Reported below: 741 Fed. Appx. 385.

No. 18–1080. *ANDERSON LIVING TRUST, FKA JAMES H. ANDERSON LIVING TRUST, ET AL. v. WPX ENERGY PRODUCTION, LLC, FKA WPX ENERGY SAN JUAN, LLC, ET AL.* C. A. 10th Cir. Certiorari denied. Reported below: 904 F. 3d 1135.

No. 18–1088. *ASGHARI-KAMRANI ET AL. v. UNITED SERVICES AUTOMOBILE ASSN.* C. A. Fed. Cir. Certiorari denied. Reported below: 737 Fed. Appx. 542.

No. 18–1100. *RAMSAY v. COMMISSIONER OF INTERNAL REVENUE.* C. A. 5th Cir. Certiorari denied. Reported below: 732 Fed. Appx. 307.

No. 18–1101. *CLASSIC CAB, INC. v. DISTRICT OF COLUMBIA ET AL.* Ct. App. D. C. Certiorari denied.

No. 18–1102. *CUFF v. VIRGINIA.* Sup. Ct. Va. Certiorari denied.

April 1, 2019

587 U. S.

No. 18–1103. *EVANS v. UNITED STATES*. C. A. 5th Cir. Certiorari denied.

No. 18–1107. *CHANDLER v. VERMONT ET AL.* C. A. 2d Cir. Certiorari denied. Reported below: 728 Fed. Appx. 73.

No. 18–1123. *SOUTHERN TRUST METALS, INC., ET AL. v. COMMODITY FUTURES TRADING COMMISSION*. C. A. 11th Cir. Certiorari denied. Reported below: 894 F. 3d 1313.

No. 18–1124. *STEPHENS INSTITUTE, DBA ACADEMY OF ART UNIVERSITY v. UNITED STATES EX REL. ROSE ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 909 F. 3d 1012.

No. 18–1126. *SEJOUR v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 747 Fed. Appx. 825.

No. 18–1127. *SPEEDYPC SOFTWARE v. BEATON*. C. A. 7th Cir. Certiorari denied. Reported below: 907 F. 3d 1018.

No. 18–1167. *SAM FRANCIS FOUNDATION ET AL. v. SOTHEBY'S, INC., ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 909 F. 3d 1204.

No. 18–6547. *BROOKS v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

No. 18–6823. *WILLIAMS v. COUNTY OF LOS ANGELES, CALIFORNIA, ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 734 Fed. Appx. 536.

No. 18–6936. *HARRIS v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 737 Fed. Appx. 974.

No. 18–7241. *KERRIGAN v. QBE INSURANCE CORP.* C. A. 9th Cir. Certiorari denied. Reported below: 738 Fed. Appx. 481.

No. 18–7326. *SOLIZ v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. C. A. 5th Cir. Certiorari denied. Reported below: 750 Fed. Appx. 282.

No. 18–7548. *ONAFEKO v. GREAT BRITAIN ET AL.* C. A. 4th Cir. Certiorari denied. Reported below: 744 Fed. Appx. 157.

No. 18–7549. *ROBLES v. BROOKWOOD TERRACE APARTMENTS; and*

587 U. S.

April 1, 2019

No. 18–7595. *ROBLES v. BROOKWOOD TERRACE APARTMENTS*. Ct. App. Kan. Certiorari denied.

No. 18–7568. *SHERE v. FLORIDA*. Sup. Ct. Fla. Certiorari denied.

No. 18–7569. *SCOTT v. JONES, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS*. Sup. Ct. Fla. Certiorari denied.

No. 18–7590. *JACOBS v. TEXAS*. Ct. Crim. App. Tex. Certiorari denied. Reported below: 560 S. W. 3d 205.

No. 18–7591. *KYEI v. SWIFT ET AL.* Ct. App. Ore. Certiorari denied.

No. 18–7597. *PONCE v. BAUGHMAN, WARDEN*. C. A. 9th Cir. Certiorari denied.

No. 18–7603. *ZAYAS v. LUTHER, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT LAUREL HIGHLANDS, ET AL.* C. A. 3d Cir. Certiorari denied.

No. 18–7604. *VILLAFANA v. CLARKE, DIRECTOR, VIRGINIA DEPARTMENT OF CORRECTIONS*. C. A. 4th Cir. Certiorari denied. Reported below: 738 Fed. Appx. 252.

No. 18–7610. *COLBAUGH v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. C. A. 5th Cir. Certiorari denied.

No. 18–7620. *ADEYINKA v. HARRIS COUNTY JAIL ET AL.* C. A. 5th Cir. Certiorari denied.

No. 18–7622. *DEMUS v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. C. A. 5th Cir. Certiorari denied.

No. 18–7624. *GRIFFIN v. CLARK, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT ALBION, ET AL.* C. A. 3d Cir. Certiorari denied.

No. 18–7625. *FLORENCE v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. C. A. 5th Cir. Certiorari denied.

No. 18–7629. *BARNETT v. ALLBAUGH ET AL.* C. A. 10th Cir. Certiorari denied. Reported below: 740 Fed. Appx. 653.

April 1, 2019

587 U. S.

No. 18–7631. *HALEY v. LEIBACH, WARDEN*. C. A. 6th Cir. Certiorari denied.

No. 18–7633. *HEARD v. SOLOMAN ET AL.* Sup. Ct. Ark. Certiorari denied.

No. 18–7636. *GLOVER v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. C. A. 5th Cir. Certiorari denied.

No. 18–7637. *VALDEZ v. TEXAS*. Ct. Crim. App. Tex. Certiorari denied.

No. 18–7640. *HOCKMAN v. BASKERVILLE, WARDEN*. C. A. 4th Cir. Certiorari denied. Reported below: 684 Fed. Appx. 277.

No. 18–7641. *HUERTA v. DAVIS, WARDEN*. C. A. 9th Cir. Certiorari denied.

No. 18–7643. *KEARSE v. FLORIDA*. Sup. Ct. Fla. Certiorari denied. Reported below: 252 So. 3d 693.

No. 18–7651. *ANDERSON v. CALIFORNIA*. Sup. Ct. Cal. Certiorari denied. Reported below: 5 Cal. 5th 372, 420 P. 3d 825.

No. 18–7653. *BONNER v. MICHIGAN*. Ct. App. Mich. Certiorari denied.

No. 18–7655. *SPENGLER v. SUPERIOR COURT OF CALIFORNIA, LOS ANGELES COUNTY, ET AL.* C. A. 9th Cir. Certiorari denied.

No. 18–7657. *SMITH v. WARREN, WARDEN*. C. A. 6th Cir. Certiorari denied.

No. 18–7658. *JONES v. OKLAHOMA*. Ct. Crim. App. Okla. Certiorari denied.

No. 18–7659. *HARDWICK v. CALIFORNIA*. Ct. App. Cal., 2d App. Dist., Div. 3. Certiorari denied.

No. 18–7665. *GARRETT v. CALIFORNIA*. Ct. App. Cal., 3d App. Dist. Certiorari denied.

No. 18–7671. *GONZALEZ v. MALOY, CLERK*. Sup. Ct. Fla. Certiorari denied.

No. 18–7676. *HILL v. LINK, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT GRATERFORD, ET AL.* C. A. 3d Cir. Certiorari denied.

587 U.S.

April 1, 2019

No. 18–7677. *GEETER v. LESATZ, WARDEN*. C. A. 6th Cir. Certiorari denied.

No. 18–7683. *ANDERSON v. LESATZ, WARDEN*. C. A. 6th Cir. Certiorari denied.

No. 18–7685. *BARGO v. PORTER COUNTY, INDIANA, ET AL.* C. A. 7th Cir. Certiorari denied. Reported below: 734 Fed. Appx. 375.

No. 18–7688. *JOHNSON v. UNITED STATES COURT OF APPEALS FOR THE SIXTH CIRCUIT*. C. A. 6th Cir. Certiorari denied.

No. 18–7690. *BELL v. LEIGH ET AL.* C. A. 8th Cir. Certiorari denied.

No. 18–7691. *ARUNACHALAM v. UNITED STATES DISTRICT COURT FOR THE NORTHERN DISTRICT OF CALIFORNIA ET AL.* C. A. 9th Cir. Certiorari denied.

No. 18–7701. *SCHNEIDER v. BANK OF AMERICA, N. A., ET AL.* C. A. 9th Cir. Certiorari denied.

No. 18–7703. *SMITH v. PENNYWELL ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 742 Fed. Appx. 230.

No. 18–7708. *KOEBEL v. CHANDLER ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 738 Fed. Appx. 418.

No. 18–7710. *GARCIA MEJIA v. HATTON, WARDEN*. C. A. 9th Cir. Certiorari denied.

No. 18–7718. *GANT v. PETERSON*. C. A. 6th Cir. Certiorari denied.

No. 18–7719. *GOMEZ v. TEXAS*. Ct. Crim. App. Tex. Certiorari denied.

No. 18–7724. *JOHNSON v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. C. A. 5th Cir. Certiorari denied.

No. 18–7729. *HARRIS v. DIAZ, ACTING SECRETARY, CALIFORNIA DEPARTMENT OF CORRECTIONS AND REHABILITATION, ET AL.* C. A. 9th Cir. Certiorari denied.

No. 18–7730. *FRAZIER v. LEE, WARDEN*. Ct. Crim. App. Tenn. Certiorari denied.

April 1, 2019

587 U. S.

No. 18–7731. *CIAVONE v. HORTON, WARDEN*. C. A. 6th Cir. Certiorari denied.

No. 18–7761. *HARRIS v. BAUGHMAN, WARDEN*. C. A. 9th Cir. Certiorari denied.

No. 18–7793. *CHASSON, AKA HANSON v. BARR, ATTORNEY GENERAL*. C. A. 9th Cir. Certiorari denied.

No. 18–7807. *YOUNG v. KRAUS ET AL.* C. A. 9th Cir. Certiorari denied.

No. 18–7810. *TRAXLER v. BURT, WARDEN*. C. A. 6th Cir. Certiorari denied.

No. 18–7811. *THOMPSON v. NAGY, WARDEN*. C. A. 6th Cir. Certiorari denied.

No. 18–7819. *DENT, AKA JIMENEZ-MENDEZ v. BARR, ATTORNEY GENERAL*. C. A. 9th Cir. Certiorari denied. Reported below: 900 F. 3d 1075.

No. 18–7826. *LEACHMAN v. WINN, WARDEN*. C. A. 6th Cir. Certiorari denied.

No. 18–7831. *LOCKETT v. FLORIDA*. Dist. Ct. App. Fla., 4th Dist. Certiorari denied. Reported below: 243 So. 3d 393.

No. 18–7854. *WILLS v. ILLINOIS*. App. Ct. Ill., 2d Dist. Certiorari denied. Reported below: 2017 IL App (2d) 150240, 92 N. E. 3d 1057.

No. 18–7866. *GRANT-DAVIS v. SOUTH CAROLINA OFFICE OF THE GOVERNOR ET AL.* C. A. 4th Cir. Certiorari denied. Reported below: 738 Fed. Appx. 790.

No. 18–7870. *BALIK v. UNITED STATES*. C. A. 9th Cir. Certiorari denied.

No. 18–7872. *TORRES v. REWERTS, WARDEN*. C. A. 6th Cir. Certiorari denied.

No. 18–7929. *BURNS v. SHOOP, WARDEN*. C. A. 6th Cir. Certiorari denied.

No. 18–7937. *SULLIVAN v. LEWIS, WARDEN*. C. A. 4th Cir. Certiorari denied. Reported below: 740 Fed. Appx. 347.

587 U. S.

April 1, 2019

No. 18–7972. *VICKERS v. MISSOURI*. Ct. App. Mo., Western Dist. Certiorari denied. Reported below: 560 S. W. 3d 3.

No. 18–8022. *ARIAS COREAS v. CLARKE, DIRECTOR, VIRGINIA DEPARTMENT OF CORRECTIONS*. C. A. 4th Cir. Certiorari denied. Reported below: 732 Fed. Appx. 193.

No. 18–8089. *MORRIS v. UNITED STATES*. C. A. 8th Cir. Certiorari denied.

No. 18–8095. *GAMINO-PEREZ v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 747 Fed. Appx. 238.

No. 18–8117. *PETE v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 740 Fed. Appx. 151.

No. 18–8131. *PAMATMAT v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. Reported below: 756 Fed. Appx. 537.

No. 18–8133. *MINGO v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

No. 18–8139. *HARDISON v. UNITED STATES*. C. A. 8th Cir. Certiorari denied.

No. 18–8143. *TALBERT v. UNITED STATES*. C. A. 8th Cir. Certiorari denied.

No. 18–8145. *FARMER v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 740 Fed. Appx. 367.

No. 18–8159. *CAMILLO-AMISANO v. UNITED STATES*. C. A. 5th Cir. Certiorari denied.

No. 18–8160. *WAGNER v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 739 Fed. Appx. 440.

No. 18–8162. *BARTOLI v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. Reported below: 728 Fed. Appx. 424.

No. 18–8165. *GALVAN v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 743 Fed. Appx. 543.

No. 18–8166. *WINSTON v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 733 Fed. Appx. 124.

No. 18–8167. *BANKS v. UNITED STATES*. C. A. 3d Cir. Certiorari denied. Reported below: 737 Fed. Appx. 639.

April 1, 2019

587 U. S.

No. 18–8168. *LONG v. PENNSYLVANIA*. Super. Ct. Pa. Certiorari denied. Reported below: 193 A. 3d 1077 and 1078.

No. 18–8171. *ALARCON FUENTES, AKA FUENTES ALARCON, AKA QUINTERO v. UNITED STATES*. C. A. 9th Cir. Certiorari denied.

No. 18–8172. *BOSTIC v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 736 Fed. Appx. 228.

No. 18–8177. *MACRI v. ILLINOIS*. App. Ct. Ill., 5th Dist. Certiorari denied. Reported below: 2018 IL App (5th) 160325–U.

No. 18–8181. *SOTO-LUGO v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 743 Fed. Appx. 561.

No. 18–8183. *SPEROW v. UNITED STATES*. C. A. 9th Cir. Certiorari denied.

No. 18–8185. *FERRARI v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 743 Fed. Appx. 560.

No. 18–8186. *GANT v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 756 Fed. Appx. 898.

No. 18–8187. *TONEY v. STOCK, WARDEN*. App. Ct. Ill., 5th Dist. Certiorari denied.

No. 18–8190. *PINEDA-PINEDA v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 743 Fed. Appx. 547.

No. 18–8195. *BOLDEN v. UNITED STATES*. C. A. 5th Cir. Certiorari denied.

No. 18–8198. *LISI v. UNITED STATES*. C. A. 2d Cir. Certiorari denied. Reported below: 706 Fed. Appx. 48.

No. 18–8205. *BASHIR v. UNITED STATES*. C. A. 3d Cir. Certiorari denied. Reported below: 738 Fed. Appx. 743.

No. 18–8210. *ALEXANDER v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS*. C. A. 11th Cir. Certiorari denied.

No. 18–8213. *SANTILLAN v. UNITED STATES*. C. A. 2d Cir. Certiorari denied. Reported below: 902 F. 3d 49.

No. 18–8216. *JOHNSON v. UNITED STATES*. C. A. 3d Cir. Certiorari denied. Reported below: 742 Fed. Appx. 616.

587 U.S.

April 1, 2019

No. 18–8217. *JOHNSON v. UNITED STATES*. C. A. 2d Cir. Certiorari denied. Reported below: 749 Fed. Appx. 29.

No. 18–8218. *HOSKINS v. UNITED STATES*. C. A. 7th Cir. Certiorari denied. Reported below: 910 F. 3d 320.

No. 18–8226. *BIRD v. COLORADO*. Ct. App. Colo. Certiorari denied.

No. 18–8238. *GOMEZ URANGA v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 909 F. 3d 1292.

No. 18–8247. *KOFALT v. UNITED STATES*. C. A. 3d Cir. Certiorari denied.

No. 18–8252. *TAYLOR v. UNITED STATES*. C. A. 9th Cir. Certiorari denied.

No. 18–8259. *GRAY v. UNITED STATES*. C. A. 6th Cir. Certiorari denied.

No. 18–8260. *HARRELL v. UNITED STATES*. C. A. 5th Cir. Certiorari denied.

No. 18–8280. *WILLIAMS v. REYNOLDS, WARDEN*. C. A. 4th Cir. Certiorari denied. Reported below: 740 Fed. Appx. 278.

No. 18–8291. *GARCIA v. JOHNSON, WARDEN*. C. A. 9th Cir. Certiorari denied. Reported below: 735 Fed. Appx. 402.

No. 18–8298. *BRAZILL v. ILLINOIS*. App. Ct. Ill., 1st Dist. Certiorari denied. Reported below: 2017 IL App (1st) 141068–U.

No. 17–1269. *KUMAR, INDIVIDUALLY AND AS GUARDIAN OF THE ESTATE AND NEXT FRIEND OF C. K., A MINOR, ET AL. v. REPUBLIC OF SUDAN*. C. A. 4th Cir. Certiorari denied. JUSTICE KAGAN took no part in the consideration or decision of this petition. Reported below: 880 F. 3d 144.

No. 18–1105. *PIERCE v. YALE UNIVERSITY ET AL.* C. A. D. C. Cir. Certiorari before judgment denied.

No. 18–6747. *FIGUEROA-BELTRAN v. UNITED STATES*. C. A. 9th Cir. Certiorari before judgment denied.

No. 18–7486. *MONTE v. VANCE ET AL.* C. A. 2d Cir. Certiorari before judgment denied.

April 1, 2, 3, 5, 2019

587 U. S.

No. 18–7944. *WALLACE v. UNITED STATES*; and
No. 18–8239. *THOMAS v. UNITED STATES*. C. A. 2d Cir. Certiorari denied. JUSTICE SOTOMAYOR took no part in the consideration or decision of these petitions. Reported below: 755 Fed. Appx. 63.

No. 18–8107. *POWELL v. UNITED STATES*. C. A. 10th Cir. Certiorari denied. JUSTICE KAGAN took no part in the consideration or decision of this petition. Reported below: 739 Fed. Appx. 511.

Rehearing Denied

No. 17–9149. *GREEN v. UNITED STATES*, 586 U. S. 845;

No. 18–5135. *HONISH v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*, 586 U. S. 1116;

No. 18–5664. *CHEESEBORO v. LITTLE RICHIE BUS SERVICE, INC.*, 586 U. S. 1077;

No. 18–6261. *VARGAS, AKA VARGAS ROMERO v. MCMAHON*, 586 U. S. 1079;

No. 18–6263. *VARGAS, AKA VARGAS ROMERO v. MCMAHON ET AL.*, 586 U. S. 1079;

No. 18–6926. *VALENTINE v. UNITED STATES*, 586 U. S. 1095; and

No. 18–7360. *MATHIS v. UNITED STATES*, 586 U. S. 1170. Petitions for rehearing denied.

APRIL 2, 2019

Dismissal Under Rule 46

No. 18–645. *WINN v. MELLEN ET AL.* C. A. 9th Cir. Certiorari dismissed under this Court’s Rule 46.1. Reported below: 900 F. 3d 1085.

APRIL 3, 2019

Miscellaneous Order

No. 18A942. *REPUBLIC OF HUNGARY ET AL. v. SIMON ET AL.* C. A. D. C. Cir. Application for stay, presented to THE CHIEF JUSTICE, and by him referred to the Court, denied.

APRIL 5, 2019

Miscellaneous Order

No. 18A1019. *GUEDES ET AL. v. BUREAU OF ALCOHOL, TOBACCO, FIREARMS AND EXPLOSIVES, ET AL.* Application for stay,